TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
FEBRUARY 26, 2024
MINUTES

STAFF REPORT

Present: Stephen Wood, Chair, Giles Branch, Megan Stevens, Elliott Barrow, Aaron Butner, Molly Hall, Julian Hopkins.
Staff: Chris Swalhah, Lynnette Lynes

Mr. Wood called the meeting to order at 6:00 pm.

A. Approval of Agenda

Mr. Hopkins moved for approval of the agenda. Mr. Butner seconded the motion. All in favor.

B. Approval of Minutes

Mr. Branch moved for approval of the minutes. Mr. Butner seconded the motion. All in favor.

C. Public Comment
D. General Correspondence

There being no comments or correspondence, Mr. Wood continued with the agenda.

E. Explanation of Procedures
F. Administration of Oath

Mr. Wood reviewed the procedures with the public and administered the oath to those speaking.

G. Business

1. **Case S-01-24, 210 West Coleman Boulevard, TMS# 517-00-00-042. Request for special exception to allow a telecommunications tower to be placed on an AB-2 zoned parcel.**

Mr. Wood stated that staff has indicated that a 60 day continuance has been requested.

▶ *Mr. Butner moved for approval of a continuance for up to 60 days. Ms. Hall seconded the motion. All in favor.*

2. Case V-11-24, 2425 Bent Oak Road, TMS# 583-00-00-416. Request for relief from the strict application of §156.111(A) to allow a 2.2-foot encroachment into the required 6-foot accessory structure setback.

This item was withdrawn by the applicant.

3. Case V-12-24, 187 4th Avenue, TMS# 514-00-00-093. Request for relief from the strict application of §156.225(C) to allow the removal of a 30'' historic Live Oak tree.

▶ Mr. Swalhah reviewed staff comments with the Board.

▶ Mr. Robert Walker, representative for the applicant, reviewed the request with the Board.

▶ There being no comments, Mr. Wood moved to Board questions.

▶ Mr. Wood closed public comment.

▶ *Mr. Barrow moved for denial based on the findings that mature trees produce 274 liters of oxygen a day; these types of trees work to help eliminate 40% of carbon dioxide every year and over their lifetime can store 48 pounds of CO2 each year; there is an ordinance to protect historic trees; most trees of this stature, size, and age can have some type of rot or damage, but does not mean that the tree should be removed; a home could be built on the property without removal of the tree; there is no evidence that there are extraordinary or exceptional conditions; no evidence that the conditions do not apply to other property; denial would not prohibit utilization of the property as a home could be built on the property; and Mount Pleasant is known for its large oak trees and trees. Mr. Hopkins seconded the motion. Motion passed on a 4 to 3 vote with Mr. Barrow, Mr. Hopkins, Ms. Hall and Mr. Wood in favor; Mr. Butner, Mr. Branch, and Ms. Stevens opposed.*

4. Case V-13-24, 1463 Indian Street, TMS# 532-10-00-053. Request for relief from the strict application of §156.225(C) to allow the removal of a 26'' historic Live Oak tree.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Wood administered the oath to Mr. David Grant and Ms. Jena Nickles.

- Mr. David Grant, arborist, and Ms. Jena Nickles, owner, reviewed the request with the Board.

- There being no comments, Mr. Wood moved to Board questions.

Mr. Wood closed public comment.

- *Ms. Hall moved for approval based on the findings that the request met the criteria in that there are extraordinary conditions due to the location of the tree and condition of the tree of D; unique as other trees in area are not in decline; denial would prohibit use of the property due to the location of the tree; and removal would not be a detriment to the neighborhood as it is a dangerous tree. Mr. Butner seconded the motion. Motion passed on a 4 to 3 vote with Mr. Butner, Mr. Branch, Ms. Stevens, and Ms. Hall in favor; Mr. Barrow, Mr. Hopkins, and Mr. Wood opposed.*

5. Case V-14-24, 415 Bayview Avenue, TMS# 517-06-00-041. Request for relief from the strict application of §156.225(C) to allow the removal of a 37'' historic Live Oak tree.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Ross Ritchie, architect, reviewed the request with the Board.

- There being no comments, Mr. Wood moved to Board questions.

- Mr. Wood closed public comment.

- *Ms. Stevens moved for approval based on the findings: there are a large number of trees on the lot; the lot size and configuration of the lot is extraordinary; conditions do not apply to other property as there are more trees on this lot; conditions would prohibit utilization of the property; the applicant has considered different options; the owner will preserve other trees on the lot and only remove the one tree; due to preservation of other trees on the property, there is no detriment and will provide mitigation for the removal of the tree. Mr. Butner seconded the motion. Motion passed on a 4 to 3 vote with Mr. Butner, Mr. Hopkins, Ms. Stevens, and Ms. Hall in favor; Mr. Barrow, Mr. Branch, and Mr. Wood opposed.*

6. Case V-15-24, 3492 Henrietta Hartford Road, TMS# 594-12-00-064. Request for relief from the strict application of §156.225(C) to allow the removal of a 30'' historic Live Oak tree.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Wood administered the oath to Mr. Marshall Badeaux and Ms. Ashley Conley.

- Mr. Marshall Badeaux, arborist, Ms. Ashley Conley, arborist, and Mr. William Deger, owner, reviewed the request with the Board.

- There being no comments, Mr. Wood closed public comment and moved to Board questions.

- *Ms. Stevens moved for approval based on the findings: that the arborist report indicates the tree is a grade F; they are preserving other trees on property; the HOA requires certain the home to be a certain minimum square footage and cannot build a home without removal of the tree; conditions do not apply to other property; cannot build without removing the tree and thereby, restricts utilization of the property; multiple options have been considered; removal would not be a detriment as it is a failing tree and if removed will allow room for other trees on the property to continue to grow. Mr. Butner seconded the motion. Motion passed on a 4 to 3 vote with Mr. Butner, Mr. Branch,*

Ms. Stevens, and Ms. Hall in favor; Mr. Barrow, Mr. Hopkins, and Mr. Wood opposed.

H. Sign Final Orders

The Board signed final orders.

There being no further business, the meeting adjourned at 7:49 pm.

Submitted by,
L. Lynes
BOZA02062024